



Notification Waiver Determination

Hexagon – Waygate Technologies

Acquisition	Hexagon AB (Hexagon), through its subsidiary Hexagon Manufacturing Intelligence LLC, applied for a notification waiver in respect of its proposed acquisition of the Waygate business, including certain assets of Baker Hughes Digital Solutions Australia Pty Ltd (together, Waygate), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	22 June 2026

Parties to the Acquisition	The acquirer, Hexagon, is a multinational industrial technology company headquartered in Stockholm. Together with its subsidiaries, Hexagon supplies a range of measuring technology and geospatial tools and software. In Australia, Hexagon is involved in the provision of non-destructive testing (NDT) solutions, including through the supply of its Volume Graphics software. This software is used for industrial computed tomography-based non-destructive evaluation, to enable the detection of internal defects, dimensional measurement, and material analysis without damaging components. The target, Waygate, is currently indirectly wholly owned and controlled by Baker Hughes Company and its subsidiary, Baker Hughes Holdings LLC. Waygate is an industrial technology company specialising in NDT and inspection solutions used to assess the integrity, quality, and performance of materials, components, and industrial assets. Its core business involves the development and supply of integrated hardware, software, and services that enable customers to detect defects, verify quality, and monitor the condition of critical assets through their lifecycle. Waygate's range of NDT technologies are used to inspect both the internal and external characteristics of components, supporting applications such as dimensional measurement, defect detection, and structural analysis. The parties are both global providers of NDT solutions.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and certain publicly available information, and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act).

	Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. there is limited overlap between the parties in the supply of NDT solutions and software in Australia, as their respective offerings primarily serve different use cases b. there are alternative providers of the types of NDT solutions and software offered by the parties available in Australia c. there appears to be a low risk of foreclosure or other concerning vertical or conglomerate effects resulting from exclusionary conduct, bundling or tying of products post-acquisition. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act